

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Team # 5	CCRB Case #: 201304277	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/17/2013 6:20 PM	Location of Incident: § 87(2)(b); 25th Precinct Hubsite: § 87(2)(b)		18 Mo. SOL 11/17/2014		Precinct: 25
Date/Time CV Reported Mon, 05/20/2013 10:53 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/20/2013 10:53 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jamal Hairston	00203	941875	NARCBMN
2. DT3 Christophe Heredia	01339	938656	NARCBMN
3. SGT Robert Kelly	03349	924018	NARCBMN
4. SGT Joey Alix	456	933789	TB DT11

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Oscar Fernandez	07103	932636	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jamal Hairston	Abuse: In front of § 87(2)(b) in Manhattan, Det. Jamal Hairston stopped § 87(2)(b)	A . Unsubstantiated
B . DT3 Christophe Heredia	Abuse: In front of § 87(2)(b) in Manhattan, Det. Christopher Heredia stopped § 87(2)(b)	B . Unsubstantiated
C . SGT Robert Kelly	Abuse: At the 25th precinct hub site, Sgt. Robert Kelly authorized a strip search of § 87(2)(b)	C . Unsubstantiated
D . SGT Joey Alix	Discourtesy: At the 25th Precinct hub site, Det. Joey Alix spoke rudely to § 87(2)(b)	D . Unsubstantiated
E . SGT Joey Alix	Abuse: At § 87(2)(b) and § 87(2)(b) in Manhattan, Det. Joey Alix refused to provide his name and/or shield number to § 87(2)(b)	E . Unsubstantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 20, 2013, § 87(2)(b) filed the following complaint in person at the CCRB.

On May 17, 2013, at approximately 6:20 p.m., Det. Jamal Hairston and Det. Christopher Heredia arrested § 87(2)(b) on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b) was subsequently strip-searched at the 25th Precinct stationhouse hub site. The following allegations resulted:

- **Allegation A—Abuse of Authority: In front of § 87(2)(b) in Manhattan, Det. Jamal Hairston stopped § 87(2)(b)**
Allegation B—Abuse of Authority: In front of § 87(2)(b) in Manhattan, Det. Christopher Heredia stopped § 87(2)(b)
§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **unsubstantiated**.
- **Allegation C—Abuse of Authority: At the 25th Precinct hub site, Sgt. Robert Kelly authorized a strip search of § 87(2)(b)**
§ 87(2)(g) it is recommended that **Allegation C** be closed as **unsubstantiated**.
- **Allegation D—Discourtesy: At the 25th Precinct hub site, Det. Joey Alix spoke rudely to § 87(2)(b)**
§ 87(2)(g) Therefore it is recommended that **Allegation D** be closed as **unsubstantiated**.
- **Allegation E—Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in Manhattan, Det. Joey Alix refused to provide his name and/or shield number to § 87(2)(b)**
§ 87(2)(g) Therefore it is recommended that **Allegation E** be closed as **unsubstantiated**.
- § 87(2)(g), § 87(4-b)

On May 21, 2013, the case was assigned to Investigator Woods. On December 26, 2013, the case was reassigned to the undersigned investigator.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a Hispanic man, § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b) was not employed.

CCRB Statement

§ 87(2)(b) provided a brief written statement on a walk-in complaint form on May 20, 2013 (encl. 8a-8d). He was also interviewed on May 20, 2013 (encl. 10b-10c).

On May 17, 2013, at approximately 6:20 p.m., § 87(2)(b) was standing in front of § 87(2)(b) located on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Manhattan, waiting for his barber to finish with a client. He had been there for less than five minutes. § 87(2)(b) was talking to two barbers, § 87(2)(b) and a man known only as § 87(2)(b) and a customer, known only as § 87(2)(b). There were two officers standing across the street in front of a Metro PCS store and two officers in an unmarked black van. The two officers outside the van arrested an unidentified man who had been standing in front of the store next to Metro PCS.

The first two officers saw § 87(2)(b) standing in front of the barber shop from across the street. They watched § 87(2)(b) before approaching him. § 87(2)(b) described the first officer as a 35-year-old dark-skinned black or Hispanic man who was 5'6" tall, had a medium build, and short black hair. The investigation identified him as Det. Jamal Hairston. § 87(2)(b) described the second officer as a 35-year-old Hispanic man who was 6'2" tall, weighed between 220 and 240 pounds, and had black spikey hair. The investigation identified him as Det. Heredia. One of the officers asked § 87(2)(b) if he was "smoking dust." § 87(2)(b) responded that he does not smoke dust. Det. Hairston and Det. Heredia were talking to each other saying, "Do you smell that? He's smoking dust." The officers called the unmarked van to the scene. Det. Hairston and Det. Heredia grabbed § 87(2)(b)'s arms and handcuffed him. Det. Hairston and Det. Heredia walked § 87(2)(b) to the van and placed him inside. The unidentified man, who the officers had arrested earlier, was in the van already. Two officers drove them to the 25th Precinct hub site. § 87(2)(b) described the driver of the van as a Hispanic man who was between 29 and 32 years old, who was 5'6" tall, who weighed 160 pounds, and whose shield number was 1223 or 1226. The investigation identified him as Det. Joey Alix. § 87(2)(b) described the passenger as a Hispanic man who was light-skinned, bald, 5'5"-5'6" tall, and who weighed 200 pounds. The investigation identified him as Det. Oscar Fernandez.

Once at the 25th Precinct stationhouse hubsite, officers placed § 87(2)(b) into a cell. There were no other prisoners in the cell. § 87(2)(b) first stated that five officers were with him in the cell, including Det. Hairston, Det. Heredia, Det. Alix, and Det. Fernandez. § 87(2)(b) later stated that these four were the only ones in the cell. Det. Fernandez told § 87(2)(b) to take off all of his clothes. He complied and took off every piece of clothing until he was completely nude. Det. Fernandez told § 87(2)(b) to lift up his "crotch" and he complied. Det. Fernandez retrieved his underwear from the floor and asked him if he peed on himself. § 87(2)(b) told the officer that he did not and that it was sweat. Det. Alix told him that he had a "nice ass." Det. Hairston, who was searching an individual in the adjacent cell, told § 87(2)(b) to spread his butt cheeks so he could make sure that he did not have any drugs in there. None of the officers touched § 87(2)(b) during the search and they did not recover any contraband.

§ 87(2)(b) was taken to the front desk where Det. Hairston wrote down his name, address, and date of birth. Det. Hairston asked an officer, who § 87(2)(b) identified as Sgt. Kelly, if that was enough information. Sgt. Kelly was not present during the strip search. Det. Hairston told § 87(2)(b) to go home. As § 87(2)(b) was leaving, he encountered the unidentified male who was in the van with him, who was also being released. The unidentified male had been arrested § 87(2)(b) and was being released with a DAT. § 87(2)(b) obtained Det. Hairston's name and shield number from the unidentified male's paperwork.

Later that day, § 87(2)(b) returned to the stationhouse and obtained Sgt. Kelly's name and shield number. As he was leaving, he saw the black unmarked van as it was driving away and figured that the officers in the van must be the officers that drove him to the stationhouse. § 87(2)(b) caught up with them on his bike at a red light at the intersection of § 87(2)(b) and § 87(2)(b). He approached the driver's side and asked Det. Alix if he remembered him from the incident earlier. Det. Alix stated that he did. § 87(2)(b) asked Det. Alix for his shield number. § 87(2)(b)'s bike was in front of the van. Det. Alix told him to move over so that he could pull the van over. Once § 87(2)(b) moved over, Det. Alix drove off. Det. Fernandez was also in the van but § 87(2)(b) did not get the chance to ask him for his shield number.

Witness: § 87(2)(b)

- § 87(2)(b) a Hispanic man, was employed as a barber at "§ 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a brief telephone statement on June 12, 2013 (encl. 11). § 87(2)(b) stated that he saw the incident from inside the barber shop. He watched § 87(2)(b) spoke with another barber named § 87(2)(b) for a few minutes. § 87(2)(b) did not see § 87(2)(b) smoking anything. Two plainclothes officers arrived and placed § 87(2)(b) in handcuffs. Both officers frisked § 87(2)(b). § 87(2)(b) did not see if the officers went into § 87(2)(b)'s pockets. § 87(2)(b) could not understand what the officers said because they spoke in English.

Witness: § 87(2)(b)

- Inv. Woods called the witness known as § 87(2)(b) five times between June 4, 2013, and September 26, 2013. Although on one occasion § 87(2)(b) provided a brief telephone statement, he never responded to subsequent contact attempts. As a result, his address and pedigree information could not be obtained.

CCRB Statement

§ 87(2)(b) provided a brief telephone statement on June 18, 2013 (encl. 12). § 87(2)(b) saw two Hispanic officers in plainclothes approached § 87(2)(b) and ask him what he was doing. § 87(2)(b) said that he was hanging out and waiting to get his hair cut. The officers asked for his identification. § 87(2)(b) asked what he had done wrong and the officers told him to "shut the fuck up." The officers then handcuffed him.

NYPD Statements:

Subject Officer: DET. JAMAL HAIRSTON

- Det. Hairston, a black man, § 87(2)(b), with a bald head and brown eyes, was § 87(2)(b) at the time of the incident.
- On the date of the incident, Det. Hairston was assigned to Manhattan North Narcotics, and he was partnered with Det. Heredia and Sgt. Kelly. He worked from 1:00 p.m. to 9:33 p.m. He was dressed in plainclothes, and he was assigned to unmarked vehicle § 87(2)(e)

Memo Book

Det. Hairston stated at the CCRB that he did not have any entries for the incident, but that he had one from the time that was related. At 7:05 p.m., one individual was arrested at § 87(2)(b) and § 87(2)(b) (encl. 13b).

Arrest Report

§ 87(2)(a) 160.50

CCRB Statement

Det. Hairston was interviewed at the CCRB on October 8, 2013 (encl. 14b-14c).

On May 17, 2013, at approximately 7:05 p.m., Det. Hairston was involved in the arrest of an individual on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Manhattan. At the time, Det. Hairston and his team were taking part in a buy and bust operation. Det. Hairston stated that that block is “a really bad area for narcotics,” that he has made many arrests for PCP there, and that there was a long-term case for PCP there in the past. A few months prior, Det. Hairston arrested an individual there who had 80 envelopes of cocaine. § 87(2)(e), § 87(2)(f)

Det. Hairston stood with Det. Heredia next to their vehicle, which was parked across the street from the barber shop. The rest of their team had left at the time. § 87(2)(e), § 87(2)(f)

Det. Hairston looked across the street and saw a man § 87(2)(b), § 87(2)(f), § 87(2)(e). The investigation identified him as § 87(2)(b) § 87(2)(e), § 87(2)(f)

Det. Hairston observed § 87(2)(b) for approximately 3-5 minutes. During this time, § 87(2)(b) talked to people, used a cell phone, and gave handshakes to a few men. Det. Hairston did not see § 87(2)(b) exchange anything with these individuals.

Det. Hairston and Det. Heredia crossed the street and approached § 87(2)(b) to investigate whether he was selling drugs. As Det. Hairston came within two feet of § 87(2)(b) he smelled a strong odor of PCP. According to Det. Hairston, PCP has an easily identifiable odor that lingers in the air. Det. Hairston displayed his shield, asked § 87(2)(b) how he was doing, and asked if he was waiting for a haircut. § 87(2)(b) told Det. Hairston not to worry about what he was waiting for. § 87(2)(b) was nasty and belligerent, and Det. Hairston thought § 87(2)(b) might fight him. He thought this because § 87(2)(b) “got nasty quick and tensed up,” and because PCP makes you belligerent and violent. For Det. Hairston, the combination of the odor of PCP and § 87(2)(b)'s demeanor immediately raised “red flags.” Det. Hairston instructed § 87(2)(b) to listen and to calm down, but § 87(2)(b) said that he would not calm down. Individuals exited the barbershop and told § 87(2)(b) to calm down and let the officers do their jobs.

Det. Hairston decided to handcuff § 87(2)(b) because he feared for his safety. Det. Hairston began to fear for his safety because of § 87(2)(b)'s attitude and because § 87(2)(b) seemed like he wanted to be combative. Det. Hairston said that § 87(2)(b) was under arrest when he was handcuffed, but he also explained that the smell of PCP had made him decide to arrest § 87(2)(b). Det. Hairston explained that, at that point, he did not know if § 87(2)(b) was selling PCP or smoking PCP, because there is no way to know by the smell if a person still has it on them, had recently smoked it, or had held it. § 87(2)(b) was placed in a prisoner van and transported to the 25th Precinct stationhouse hub site.

Once at the 25th Precinct stationhouse, Det. Hairston informed Sgt. Kelly § 87(2)(e), § 87(2)(f) about how § 87(2)(b) smelled, and about how § 87(2)(b) was acting. Det. Hairston believed § 87(2)(b) was hiding contraband because of the way he smelled § 87(2)(e), § 87(2)(f). Sgt. Kelly authorized a strip search, which was conducted by Det. Hairston and which took place in the designated area in the stationhouse. Det. Hairston instructed § 87(2)(b) to remove his belt, shoelaces, shoes, socks, shirt, jeans, and underwear. He then instructed § 87(2)(b) to lift his scrotum and to turn around, squat, and cough. § 87(2)(b)'s clothing smelled of PCP during the search. There were no other officers present during the strip search. At no point did Det. Hairston or any other officer tell § 87(2)(b) that he had a "nice ass." No contraband was found during the strip search. § 87(2)(b) was released and his arrest was voided.

At no point during the incident did § 87(2)(b) ask Det. Hairston for his name and shield number. At no point during the incident did Det. Hairston hear § 87(2)(b) ask any other officer for his or her name and shield number.

Subject Officer: DET. CHRISTOPHER HEREDIA

- *Det. Heredia, a Hispanic man, 6'1" tall, 290 pounds, with black hair and brown eyes, was § 87(2)(b) at the time of the incident.*
- *On the date of the incident, Det. Heredia was assigned to Manhattan North Narcotics and was partnered with Det. Hairston. He worked from 12:27 p.m. to 9:00 p.m. He was dressed in plainclothes and worked in unmarked vehicle § 87(2)(e).*

Memo Book

Det. Heredia had no entries in his memo book regarding the incident (encl. 17b).

CCRB Statement

On September 17, 2013, Det. Heredia was interviewed at the CCRB (encl. 18b) § 87(2)(g).

While Det. Heredia and Det. Hairston sat in their vehicle, § 87(2)(e), § 87(2)(f) Det. Hairston only told Det. Heredia that they were going to stop someone but did not provide a reason as to why.

When they arrived at the location, Det. Hairston pointed out § 87(2)(b) and Det. Heredia got out of the car to assist Det. Hairston with the stop and back him up. It was Det. Hairston's investigation so Det. Heredia did not have as much information as Det. Hairston.

Det. Hairston approached § 87(2)(b) and spoke to him. The other men standing around § 87(2)(b) were asking Det. Heredia what they were doing and if everything was okay. Det. Heredia assured them that everything was okay and that they were only conducting an investigation. He was unable to give them any information about what the investigation was regarding. Det. Heredia did not recall talking to § 87(2)(b).

§ 87(2)(b) was placed in handcuffs by Det. Hairston with Det. Heredia's assistance. Det. Heredia did not know the reason for the arrest.

When § 87(2)(b) arrived at the stationhouse, Det. Heredia assisted in the arrest processing. Det. Heredia did not have a view of the cell area from where he was and did not learn of anything that happened in the cell area with § 87(2)(b). Det. Heredia did not see or learn that § 87(2)(b) was strip-searched. Det. Heredia did not say that § 87(2)(b) had "a nice ass" and did not hear any other officer say this. Det. Heredia did not have any further interactions with § 87(2)(b) and had not had any interactions with him prior to this day. § 87(2)(b) never asked Det. Heredia for his shield number and Det. Heredia did not hear him ask any other officer for their shield number.

Det. Heredia did not know what ultimately happened to § 87(2)(b). Det. Heredia did not recall seeing any officers, other than Det. Hairston and Sgt. Kelly, interact with § 87(2)(b).

Subject Officer: SGT. ROBERT KELLY

- *Sgt. Kelly, a white man, § 87(2)(b), with salt and pepper hair and black eyes, was § 87(2)(b) at the time of the incident.*
- *On the date of the incident, Sgt. Kelly was the 23rd Module Supervisor in Manhattan North Narcotics. He was partnered with Det. Hairston and Det. Heredia. He worked from 12:25 p.m. to 11:00 p.m. He was dressed in plainclothes and worked in unmarked vehicle § 87(2)(e).*

Memo Book

At 8:10 p.m., § 87(2)(b)'s arrest was voided and a strip search yielded negative results (encl. 15b).

CCRB Statement

On September 17, 2013, Sgt. Kelly was interviewed at the CCRB (encl. 16b-16c). § 87(2)(g)

§ 87(2)(b) Sgt. Kelly stated that he was in the vehicle with Det. Hairston and Det. Heredia § 87(2)(e), § 87(2)(f)

§ 87(2)(b) They drove to the location and Det. Hairston and Det. Heredia got out of the vehicle. Sgt. Kelly drove towards the intersection of § 87(2)(b) and § 87(2)(b) to move their vehicle away from the scene.

Sgt. Kelly did not join Det. Hairston and Det. Heredia until the individual, identified as § 87(2)(b) was in handcuffs. When Sgt. Kelly joined them, Det. Hairston gave him a synopsis of the incident.

Det. Hairston told Sgt. Kelly that he observed a couple of kids walking in groups approach § 87(2)(b) and then split up. Sgt. Kelly stated that from their experience in narcotics, such behavior is indicative of a drug transaction. Det. Hairston did not see a hand to hand transaction but § 87(2)(e), § 87(2)(f) based on his observations, he thought that there could have been a drug transaction.

Sgt. Kelly joined Det. Hairston and Det. Heredia to verify the arrest and could smell an odor of PCP coming from § 87(2)(b) who was standing approximately five feet away from him. The officers thought that either § 87(2)(b) had PCP on him or that he may have smoked it. The distinct smell of PCP, § 87(2)(b)'s irate and defensive behavior, his brief interactions with multiple people and his presence in a drug prone location were all indications that § 87(2)(b) may have been in possession of drugs.

At the stationhouse, Sgt. Kelly authorized Det. Hairston to conduct a strip search due to the distinct smell coming off of § 87(2)(b)'s body § 87(2)(e), § 87(2)(f). Sgt. Kelly stated that from their past experiences at the arrest location, a lot of the PCP dealers keep their product in their underwear and in their socks.

Sgt. Kelly stood approximately ten feet away from § 87(2)(b) behind the desk, when they informed him that they were going to conduct a strip search. While standing behind the desk, Sgt. Kelly could no longer smell the odor of PCP emanating from § 87(2)(b). The strip search was conducted inside of the cell by Det. Hairston and possibly one of the officers assigned to the prisoner van. Sgt. Kelly observed the strip search from outside of the cell, approximately 4-5 feet away. Sgt. Kelly did not tell § 87(2)(b) that he had a "nice ass" and did not hear another officer say this. When the strip search did not reveal anything, Sgt. Kelly instructed that § 87(2)(b)'s arrest be voided and that he be released.

Witness Officer: DET JOEY ALIX

- *Det. Alix, a Hispanic man, § 87(2)(b), with salt and pepper hair and brown eyes, was § 87(2)(b) at the time of the incident.*
- *On the date of the incident, Det. Alix was assigned to unmarked prisoner van § 87(2)(e) in Manhattan North Narcotics. He was partnered with Det. Fernandez. He was dressed in plainclothes and worked from 1:00 p.m. to 9:33 p.m.*

Memo Book

At 7:15 p.m., there was one under by Det. Hairston. At 7:30 p.m., Det. Alix arrived at the 25th Precinct hub site (encl. 19c).

CCRB Statement

On September 24, 2013, Det. Alix was interviewed at the CCRB (encl. 20b).

Det. Alix stated that at approximately 7:15 p.m. on the date of the incident, he arrived at § 87(2)(b) in Manhattan in a prisoner van. When Det. Alix arrived at the scene, a Hispanic man, identified by the investigation as § 87(2)(b) was already in handcuffs. Det. Alix did not receive any information regarding § 87(2)(b)'s arrest. Det. Alix did not recall § 87(2)(b)'s demeanor and did not see or recall anything unusual about § 87(2)(b). He did not recall § 87(2)(b) having a distinct smell.

Det. Alix placed § 87(2)(b) inside the prisoner van and took him to the 25th Precinct hub site. A strip search was conducted at the hub site but Det. Alix was not present for it. The strip search was authorized by Sgt. Kelly but Det. Alix did not know which officer conducted the search. Det. Alix did not learn the reason for the strip search.

§ 87(2)(b) never asked Det. Alix for his name and shield number and he did not hear him ask any other officer for this information. Det. Alix did not tell § 87(2)(b) that he had a “nice ass” and did not hear another officer say this. He did not recall any other officers besides Sgt. Kelly and Det. Hairston interact with § 87(2)(b) at the stationhouse.

Witness Officer: DET OSCAR FERNANDEZ

- *Det. Fernandez, a Hispanic man, § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) at the time of the incident.*
- *On the date of the incident, Det. Fernandez was assigned to unmarked prisoner van § 87(2)(e) in Manhattan North Narcotics. He was partnered with Det. Alix. He was dressed in plainclothes and he worked from 1:00 p.m. to 9:33 p.m.*

Memo Book

At 5:20 p.m. Det. Fernandez picked up a prisoner at § 87(2)(b) and § 87(2)(b). At 6:15 p.m., he picked up two prisoners at § 87(2)(b) and § 87(2)(b) (encl. 22).

CCRB Statement

Det. Fernandez was interviewed at the CCRB on October 31, 2013 (encl. 23b).

Det. Fernandez stated that when he arrived on the scene of the arrest, § 87(2)(b) was already in handcuffs. § 87(2)(b) was placed in Det. Fernandez's van, and he and Det. Alix transported § 87(2)(b) to the 25th Precinct stationhouse. Det. Fernandez could not recall whether he or Det. Alix drove the van. There were no other officers in the van at the time. Det. Fernandez could not recall what § 87(2)(b) was doing with the officers on scene, and he did not know why officers believed that § 87(2)(b) possessed narcotics or had committed an offense. Det. Fernandez

described § 87(2)(b) as “very irate” and recalled that he was much louder than the other prisoners in the van during the ride to the stationhouse. Det. Fernandez recalled that § 87(2)(b) used profanity but could not recall his exact words. Det. Fernandez did not recall § 87(2)(b) smelling of any strong odor and did not recall smelling any particular odor in the prisoner van.

Upon arriving at the 25th Precinct stationhouse, Det. Fernandez placed § 87(2)(b) in the cell area at the rear where strip searches are conducted. Sgt. Kelly ordered that § 87(2)(b) be strip-searched. Det. Fernandez did not know the specific reason why Sgt. Kelly ordered a strip search or when he ordered that it be conducted. Det. Fernandez could not recall if he was present for the strip search. He stated that he did not remain in the cell area for long, but also thought that he may have been going in and out of the area while the search was conducted. At no point did Det. Fernandez tell § 87(2)(b) that he had a “nice ass,” nor did he hear any other officer make that remark.

Det. Fernandez could not recall if he had any further interaction with § 87(2)(b) on that date. Det. Fernandez recalled that he interacted with § 87(2)(b) on another occasion, when § 87(2)(b) was also arrested. Det. Fernandez could not recall if this took place before or after the incident at hand. Det. Fernandez recalled that on that occasion, § 87(2)(b) was already at the hub site when he saw him.

Det. Fernandez did not recall ever interacting with § 87(2)(b) at a time when § 87(2)(b) was not under arrest. At no point during the incident did § 87(2)(b) ask Det. Fernandez for his name and shield number, nor did Det. Fernandez hear § 87(2)(b) ask any other officer for his name and shield number.

NYPD Documents

Command Log

§ 87(2)(b)'s arrest was entered into the command log at 7:35 p.m., a strip search was authorized by Sgt. Kelly and returned negative results, and § 87(2)(b)'s arrest was voided at § 87(2)(b).

Arrest for Incident and Disposition

- § 87(2)(b)'s arrest was voided on § 87(2)(b).

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming severe personal and psychological injuries sustained as a result of false arrest, false imprisonment, selective prosecution, abuse of process, and negligence, and seeking \$1,000,000 as redress (encl. 29a-29b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaints:

- § 87(2)(b) [redacted]
- [redacted]

Subject Officers CCRB History

- Det. Jamal Hairston has been a member of the service for 7 years and there are no substantiated CCRB allegations against him (encl. 5).
- Det. Christopher Heredia has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. 6).
- Sgt. Robert Kelly has been a member of the service for 14 years and there are 7 substantiated CCRB allegations against him (encl. 4).
 - In CCRB case #201213132, Sgt. Kelly was substantiated for allegations of threat of arrest, threat of force, discourtesy, stop, frisk, § 87(2)(g), § 87(4-b) [REDACTED]. The Board recommended charges for all substantiated allegations, and discipline has not yet been imposed.

Conclusion

Identification of Subject Officers

§ 87(2)(b) [REDACTED] described his arresting officer as a 35-year-old black or Hispanic man named “Jamal Harrison” who was 5’6” tall, had a medium build, had short black hair, and whose shield number was 203. Det. Jamal Hairston is a 40-year-old black man who is 5’7” tall, who weighs 180 pounds, and whose shield number is 00203. Det. Hairston is listed on § 87(2)(b) [REDACTED]’s arrest report as the arresting officer, and Det. Hairston subsequently admitted to interacting with § 87(2)(b) [REDACTED].

§ 87(2)(b) [REDACTED] described Det. Heredia as a 35-year-old Hispanic man who was 6’2” tall, who was heavysset and weighed between 220 and 240 pounds, and whose shield number was 1339. Det. Christopher Heredia is a 29-year-old Hispanic man who is 6’1” tall, weighs 290 pounds, and has shield number 01339. Det. Heredia subsequently admitted to interacting with § 87(2)(b) [REDACTED].

§ 87(2)(b) [REDACTED] did not provide a physical description of Sgt. Kelly, but obtained his name and shield number from Sgt. Kelly after the incident. Sgt. Kelly is listed as the verifying officer on § 87(2)(b) [REDACTED]’s arrest report and is listed as having authorized the strip search in the command log. Sgt. Kelly subsequently admitted to interacting with § 87(2)(b) [REDACTED].

§ 87(2)(b) [REDACTED] described Det. Alix as a Hispanic man who was between 29 and 32 years old, who was 5’6” tall, who weighed 160 pounds, who had black hair, and whose shield number was 1223 or 1226. According to the pedigree sheet filled out by Det. Alix at his CCRB interview, he is a 31-year-old Hispanic man who is 5’9” tall, weighs 195 pounds, and has salt and pepper hair. Det. Alix’s shield number is 01024. § 87(2)(b) [REDACTED] stated that Det. Alix drove the prisoner van during the incident, and he described the passenger as bald. Det. Fernandez is bald. § 87(2)(g) [REDACTED].

Allegations Not Pleaded

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Investigative Findings and Recommendations

- **Allegation A—Abuse of Authority: In front of § 87(2)(b) in Manhattan, Det. Jamal Hairston stopped § 87(2)(b)**
Allegation B—Abuse of Authority: In front of § 87(2)(b) in Manhattan, Det. Christopher Heredia stopped § 87(2)(b)

It is undisputed that Det. Hairston and Det. Heredia approached § 87(2)(b) spoke to him, and placed him under arrest.

§ 87(2)(b) stated that after the detectives approached him, one asked if he was smoking dust. § 87(2)(b) told them that he does not smoke dust, and they handcuffed him and arrested him.

The witness known as § 87(2)(b) stated that the detectives approached § 87(2)(b) asked him what he was doing and asked for his identification.

§ 87(2)(e), § 87(2)(f)
§ 87(2)(b). Det. Hairston observed a man § 87(2)(e), § 87(2)(f) talking to people, using his cellphone, and giving handshakes, but did not see him exchange anything with anyone. The investigation identified the man as § 87(2)(b). Det. Hairston and Det. Heredia approached § 87(2)(b) to investigate whether he was selling PCP. When Det. Hairston came within two feet of § 87(2)(b) he smelled a strong odor of PCP. § 87(2)(b) became belligerent and seemed combative when Det. Hairston engaged him in conversation. The combination of § 87(2)(e), § 87(2)(f) § 87(2)(b)'s demeanor, and the odor of PCP prompted Det. Hairston to place § 87(2)(b) under arrest.

Det. Heredia stated that Det. Hairston § 87(2)(e), § 87(2)(f) informed him that they were going to stop an individual. Det. Heredia did not know the reason for the stop. Det. Hairston spoke to § 87(2)(b) while Det. Heredia spoke to other individuals on scene. Det. Heredia then assisted Det. Hairston in handcuffing § 87(2)(b). Det. Heredia did not know why § 87(2)(b) was arrested.

Sgt. Kelly stated that he arrived on scene after § 87(2)(b) was handcuffed, and that Det. Hairston provided a description of his initial encounter with § 87(2)(b). According to Sgt. Kelly, § 87(2)(e), § 87(2)(f) Det. Hairston observed § 87(2)(b) and saw groups of kids walk up to him and then split up, but did not see any transactions. Det. Hairston and Det. Heredia approached § 87(2)(b) who became defensive and asked why he was being stopped. Det. Hairston smelled an odor of PCP coming from § 87(2)(b)'s body and placed him under arrest. Sgt. Kelly arrived on scene and, once standing approximately five feet from § 87(2)(b) also smelled the odor of PCP.

Det. Alix and Det. Fernandez both stated that they did not recall § 87(2)(b) smelling of any strong or distinct odor.

§ 87(2)(g)
§ 87(2)(e), § 87(2)(f), § 87(2)(g)

The distinctive odor of PCP, combined with officers' observations and knowledge, provides probable cause for stopping and searching an individual. People v. Darby, 263 A.D.2d 112, 701 N.Y.S.2d 395 (1st Dept. 2000) (encl. 1b).

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

- **Allegation C—Abuse of Authority: At the 25th Precinct hub site, Sgt. Robert Kelly authorized a strip search of** § 87(2)(b)

It is undisputed that Sgt. Robert Kelly authorized a strip search of § 87(2)(b). Sgt. Kelly stated that § 87(2)(e), § 87(2)(f)

Det. Hairston had smelled an odor of PCP emanating from § 87(2)(b)'s body when they stood approximately two feet apart.

Sgt. Kelly also reported smelling an odor of PCP emanating from § 87(2)(b) when they stood approximately five feet apart. Sgt. Kelly authorized the strip search based on § 87(2)(e), § 87(2)(f) the odor of PCP.

Det. Alix and Det. Hernandez both stated that they did not recall § 87(2)(b) smelling of any strong or distinct odor.

§ 87(2)(g)

Patrol Guide Procedure 208-05 states that a strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods (encl. 2b).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **unsubstantiated**.

- **Allegation D—Discourtesy: At the 25th Precinct hub site, Det. Joey Alix spoke rudely to** § 87(2)(b)

§ 87(2)(b) stated that while he was being strip-searched, Det. Alix said that he had a “nice ass.”

Det. Alix denied being present during the strip search. Det. Fernandez did not recall if he was present for the strip search and denied ever hearing Det. Alix tell § 87(2)(b) that he had a “nice ass.” Det. Hairston stated that he conducted the strip search and that there were no other officers present. Sgt. Kelly observed the strip search and denied ever hearing any officer tell § 87(2)(b) that he had a “nice ass.” Det. Heredia denied being present during the strip search.

§ 87(2)(g)

Therefore it is recommended that **Allegation D** be closed as **unsubstantiated**.

- **Allegation E—Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in Manhattan, Det. Joey Alix refused to provide his name and shield number to § 87(2)(b)**

§ 87(2)(b) stated that while he was being strip-searched, Det. Alix said that he had a “nice ass.” § 87(2)(b) also stated that after being released, he saw Det. Alix and Det. Fernandez riding in the prisoner van and approached them on his bicycle. He stopped at the driver’s window and asked Det. Alix if he remembered him. Det. Alix stated that he did. § 87(2)(b) asked Det. Alix for his shield number. Det. Alix told § 87(2)(b) to move his bicycle from in front of the van so Det. Alix could pull the van over. § 87(2)(b) moved his bicycle and Det. Alix drove away.

Det. Alix stated that § 87(2)(b) never asked him for his name and shield number. Det. Fernandez denied ever hearing § 87(2)(b) ask any other officer for his name and shield number, and he denied ever interacting with § 87(2)(b) when § 87(2)(b) was not under arrest.

§ 87(2)(g)

Therefore it is recommended that **Allegation E** be closed as **unsubstantiated**.

- § 87(2)(g), § 87(4-b)

Team: 5

Investigator: _____ Daniel Giansante _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date